

Voluntary national report of the Kingdom of Bahrain on the application of the 1960 Convention and recommendation Against Discrimination in Education

2019-2020

1. Introduction

On 14 December 1960, the General Conference of UNESCO adopted the 1960 Convention and Recommendation Against Discrimination in Education based on the Universal Declaration of Human Rights in accordance with:

1. The principle of non-discrimination: everyone has the right to education.
2. Establishing cooperation between nations in order to support universal respect and the human right to equal educational opportunities.
3. Supporting equal opportunities and treatment in education.

The 10th consultation affirms that the right to education is one of the key principles underpinning the 2030 Agenda and Sustainable Development Goal 4 (SDG4) on education adopted by the international community. SDG4 is rights-based and seeks to ensure the full enjoyment of the right to education as fundamental to achieving sustainable development.

GENERAL INFORMATION:

Country name: Kingdom of Bahrain

Organization or entity responsible for the preparation of the report: Ministry of Education

I. Information on the legislative, judicial, administrative and other measures taken by the state at the national level

1. Ratification of the Convention¹

Is your country a State Party to the Convention?

☐ Yes

☐ **No:** Does your country plan to ratify this instrument?

☐ Yes: Please indicate the stage of ratification process reached by your country:

☐ Close to ratification

¹ http://portal.unesco.org/en/ev.php-URL_ID=12949&URL_DO=DO_TOPIC&URL_SECTION=201.html

- ☐ Underway
- ☐ Actively under preparation

- Please briefly explain the difficulties encountered in completing the ratification process and the means of overcoming them:

Describe:

→ *the obstacles, whether legal, institutional, political or practical*

→ *the means of overcoming them and the extent to which UNESCO can assist in completing the process*

- ☐ No, not considering ratification in the near future. Please explain why:

2. Ratification of the Protocol² instituting a Conciliation and Good Offices Commission to be responsible for seeking the settlement of any disputes which may arise between States Parties to the Convention against Discrimination in Education

Has your country ratified the Protocol?

☐ Yes

☐ No, please briefly explain the difficulties encountered:

3. Legal framework governing the protection of rights guaranteed in the Convention and the Recommendation in the national legal system

In case your country is a State Party to the Convention:

- Is the Convention directly applicable in your country's domestic law following its ratification?

☐ Yes ☐ No

- If not, has it been incorporated into the national Constitution or domestic law so as to be directly applicable?

☐ Yes ☐ No

This seeks information on whether the provisions of the Convention are guaranteed in a domestic legal instrument. The report should list the main legal texts (Constitution,

legislative text or other provisions) adopted to guarantee the right to education for all and to promote equal educational opportunities. References, dates and aims could be provided.

- Have the provisions of the Convention been invoked before and given effect to by courts, tribunals and administrative authorities?

☐ Yes ☐ No

If yes, please illustrate on the basis of available case law and jurisprudence. Information could also be given about the judicial, administrative and other competent authorities having jurisdiction with respect to the rights guaranteed by the Convention and the scope of such competence.

In case your country is not a State Party to the Convention:

- Have legislative measures been taken pursuant to the Recommendation?

☐ Yes ☐ No

If yes, the report could list the main texts adopted to guarantee the right to education for all and to promote equal educational opportunities. References, dates and aims could be provided.

- Please explain briefly the extent to which public policies and programmes correspond to the general provisions of the Recommendation.

Information supplied could demonstrate how such policies and programmes comply with commitments of the right to education under the Recommendation.

II. Information on the implementation of the Convention or Recommendation

1. Non-discrimination and equal opportunities in education in the context of Sustainable Development Goal 4 (SDG4)

Articles/Paragraphs 1(1), 2 and 3 of the Convention/Recommendation provide for non-discrimination and equal opportunities in education. This part relates to the main purpose of the Convention/Recommendation that is to underscore the state obligation to proscribe any form of discrimination in education while promoting equality of educational opportunity.

This corresponds to the overall aspiration of SDG4 which aims to “ensure inclusive and equitable quality education and promote lifelong learning opportunities for all” by 2030. It therefore covers all the SDG4 targets, but also specifically SDG target 4.5.³

- 1.1 Please indicate measures adopted by your government to eliminate and prevent discrimination in education within the meaning of the Convention/Recommendation (please tick all that apply)⁴ (several items could be ticked/mentioned):

- ☐ **YES** Constitutional laws and/or legislation prohibit discrimination in education
- ☐ **YES** Regulations prohibit discrimination in education
- ☐ **YES** Policies and programmes aim to eliminate and prevent discrimination in education
- ☐ Access to justice in case of violations of the right to non-discrimination in education
- ☐ **YES** Combatting discrimination in terms of curriculum
- ☐ **YES** Other:

In line with the strategic objectives of the Ministry of Education regarding:

The general theme of improving the quality and efficiency of education services.

The second objective: quality curricula that are compatible with the requirements of the twenty-first century and Bahrain Economic Vision 2030.

The fifth objective: educational opportunities for all.

The objective of inclusive and quality education and enhancing learning opportunities for all, in accordance with Bahrain Economic Vision 2030.

Please provide a brief description of the relevant legal, regulatory or policy texts including measures on:

- *Non-discrimination in the admission of pupils to educational institutions*
- *Non-differential treatment, including of foreign nationals resident in your country*

- The provisions of article 7 of the Constitution of the Kingdom of Bahrain.
- The fifth strategic objective educational opportunities for all.

- 1.2 Please indicate actions taken by your government to guarantee equal access to all levels and types of education in your country (several items could be ticked/mentioned):

- ☐ **YES** Constitutional laws and/or legislation guarantee equal access to education
- ☐ **YES** Regulations ensure equal access to all levels and types of education
- ☐ **YES** Policies and programmes ensure equal access to all levels and types of education
- ☐ **YES** Other:

The policy of the Kingdom of Bahrain in the education sector is based on the principles contained in the Constitution of the Kingdom, which includes the principle of equal

³ Which calls on states to “eliminate gender disparities in education and ensure equal access to all levels of education and vocational training for the vulnerable, including persons with disabilities, indigenous peoples and children in vulnerable situations”.

⁴ See: Article/Paragraph 1(1).

opportunities for citizens, stipulated in article 4, the principle of equality between citizens, stipulated in articles 4 and 18, and the principle of guaranteeing education services to all children of the nation, stipulated in article 7.

The Ministry of Education is committed to the international agreements ratified by the Kingdom of Bahrain regarding putting into effect the principle of equal opportunities for all individuals from a standpoint of equality and full participation.

Fifth strategic goal: educational opportunities for all.

- Please indicate the relevant legal, regulatory or policy texts and provide a brief description of the measures taken:

This notably is covered under SDG target 4.1 and partly target 4.b⁵

- 1.3 Please indicate the actions taken and planned in your country to ensure equality of opportunities (in terms of access, participation and completion), equal treatment and to support the inclusion of all learners (including girls and women, the economically and socially marginalized, people with disabilities and other vulnerable groups) in learning processes (several items could be ticked/mentioned):

- | | |
|--|---|
| ☐ Providing financial incentives and fellowships | ☐ Providing auxiliary assistance |
| ☐ YES Providing positive or affirmative action measures | ☐ Adapting education infrastructure |
| ☐ YES Ensuring inclusion in mainstream schools for all learners | ☐ YES Adapting curricula and methods |
| ☐ YES Training teachers on inclusive education | ☐ YES Providing language classes to newcomers (e.g. refugees) |
| ☐ YES Ensuring gender parity in science, technology, engineering and mathematics (STEM) and technical and vocational training (TVET) | ☐ YES Eliminating administrative barriers to education ⁶ |
| ☐ YES Providing re-entry programmes for young mothers | ☐ YES Providing flexible learning pathways |
| ☐ YES Eliminating all barriers for pregnant girls or young mothers in education | ☐ YES Valuing diversity in schools |
| ☐ Other: | ☐ YES Combatting stereotyping and stigmatisation |

⁵ Which calls on states to “substantially expand globally the number of scholarships available [...] for enrolment in higher education, including vocational training and information and communications technology, technical, engineering and scientific programmes”.

⁶ Administrative barriers to education include, amongst others, lack of identity papers or birth certificates required to enrol.

- Please elaborate further on the measures taken, including those to ensure *gender equality and the empowerment of girls and women in and through education*:

Follow-up to the fifth Sustainable Development Goal "Achieve gender equality and empower all women and girls".

The Ministry of Education is committed to the international agreements ratified by the Kingdom of Bahrain regarding putting into effect the principle of equal opportunities for all individuals from a standpoint of equality and full participation.

The Kingdom of Bahrain guarantees access to education and health care, representation in the political and economic decision-making process, and the implementation of new legal frameworks regarding women's equality in the workplace and the elimination of harmful practices targeting women.

Bodies responsible for achieving the Goal and monitoring progress towards doing so:

- ☐ Supreme Council for Women
- ☐ Ministry of Labour and Social Development
- ☐ Civil Service Bureau
- ☐ Public Authority for Social Insurance
- ☐ Information and eGovernment Authority.

- Please indicate whether your country has adopted and reviewed legislation related to the minimum age for marriage so that it conforms to international standards (18 years):

Please note that child marriage is a discriminatory practice as often girls can marry at a younger age than boys. Child marriage violates the child's right to education as they are more likely to drop out of school and children who are not in school are more likely to get married.

Yes ☐ No ☐

Please provide reference to the relevant laws and provisions:

2. Progress made with respect to implementing the right to education in the context of SDG 4

2.1 Pre-primary education

Pre-primary education is not explicitly provided for in the Convention/Recommendation. However, the international community has increasingly recognized the importance of early childhood care and education (ECCE) over the years. The Committee on the Rights of the Child initially recognized "the right to education during early childhood as beginning at birth" (General Comment 7). This became more explicit with the 2010 Moscow Framework for Action and Cooperation⁷. In the current context of the Education 2030 agenda, under SDG target 4.2,

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Which states that "ECCE is part of the right to education and the main foundation for holistic human development".

states have now committed to “the provision of at least one year of free and compulsory pre-primary education”.

- Is compulsory and free of charge pre-primary education available in your country?

☐ Pre-primary education is compulsory: Please provide the age of enrolment and duration:

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☐ Pre-primary education is free of charge for all: Please provide the duration:

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- Please list the laws and policies that ensure the availability of pre-primary education for all and provide information on the difficulties experienced by your government in the realization of access to pre-primary education. Brief quantitative information could be added.

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2.2 Universal primary and secondary education

Article/Paragraph 4(a) of the Convention/Recommendation provides for universal primary and secondary education. In the context of the Education 2030 agenda, SDG target 4.1 calls on States to provide “12 years of free, publicly funded, inclusive, equitable, quality primary and secondary education – of which at least nine years are compulsory.”

Education in the Kingdom of Bahrain consists of nine years of basic education, including primary and middle school, and three further years of secondary education of various types.

Primary education

- Is primary education compulsory in your country?

☐ Yes ☐ No

Please indicate the current duration period of compulsory education and the age of enrolment:

In this part, you may also provide information on the difficulties experienced by your government in the realization of universal access to primary education. Quantitative information could be added.

In the Kingdom of Bahrain basic and extended education for three years schooling at the primary stage is compulsory by law for all aged 6 to 12 years. The Ministry of Education is keen to ensure that all children of this age group receive appropriate education, whether in government or private schools.	
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Total number of students in primary education in 2019:	70,371
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Total number of male students in primary education in 2019:	35,019
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Total number of female students in primary education in 2019:	35,352
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- Is primary education available free of charge to all?

☐ Yes: Please provide the duration and indicate the extent to which it is.

For this, please list the laws and policies that ensure the universal and free availability of primary education and indicate whether direct and indirect costs are charged (such as tuition fees, exam fees, schools supplies, uniforms, transport costs and compulsory levies on parents).

Believing in the principle of "education for all", the Government of the Kingdom of Bahrain provides free education in primary government schools for citizens and residents. Students with special needs are integrated into schools, which have been prepared in terms of awareness and training and equipped with the tools that meet these students' needs.

☐ No: Is your country already engaged in legal and policy reforms to work towards universal and free primary education?

☐ Yes ☐ No

• Please briefly provide information on the reforms taken:

Secondary education

In this part, please provide information on the general availability and accessibility to all of secondary education, including technical and vocational secondary education and training in your country.

- Is secondary education (middle/high) available free of charge?

☐ Yes: Please provide the duration and describe the extent to which it is.

Please list the laws and policies that ensure the free availability of secondary education and describe whether direct and indirect costs are covered (such as tuition fees, exam fees, school supplies, uniforms, transport costs and compulsory levies on parents).

Believing in the principle of "education for all", the Government of the Kingdom of Bahrain provides free education in primary government schools for citizens and residents. Students with special needs are integrated into schools, which have been prepared in terms of awareness and training and equipped with the tools that meet these students' needs.

☐ No: What are the measures your government intends to take to ensure free secondary education?

- Is secondary education (middle/high) compulsory in your country?

☐ Yes ☐ No

- Please provide details on its implementation and indicate the duration of compulsory secondary education and the age of enrolment:

In this part, you may also provide information on the difficulties experienced by your government in the realization of universal access to secondary education. Quantitative information could be added.

In the Kingdom of Bahrain for basic education and three years at the preparatory stage is compulsory by law for all aged from 12 to 15 years. The Ministry of Education is keen to ensure that all children of this age group receive appropriate education, whether in government or private schools.	
Total number of students in middle school in 2019-2020:	36,713
Total number of male students in middle school in 2019-2020:	18,453
Total number of female students in middle school in 2019-2020:	18,260
High school education is available in the Kingdom of Bahrain. High school education in the Kingdom of Bahrain is available to all, and lasts for three academic years for those aged from 15 to 18. The Ministry of Education is keen to provide good educational services to all who are entitled to it, and to develop the education system in terms of its structure, content and comprehensiveness to keep pace with changes in society.	
Total number of students in high school in 2019-2020:	30,247
Total number of male students in high school in 2019-2020:	12,000
Total number of female students in high school in 2019-2020:	18,247
High school education is free in Bahrain. Believing in the principle of "education for all", the Government of the Kingdom of Bahrain provides free education in government high schools for citizens and residents: there are no tuition or exam fees, no transport costs (except for private transport), and no taxes are imposed on parents for their children's education.	
Technical and vocational education is available in Bahrain. Technical and vocational education in the Kingdom of Bahrain is available to all and lasts for three academic years for those aged from 15 to 18. The Ministry of Education has decided to include females in secondary vocational and technical education. This has provided an appropriate forum for female students to change their perceptions and provided appropriate opportunities for showing their talents and capabilities to society and in the labour market in particular. Technical specializations, including computer technology and maintenance of medical equipment, are provided for girls in four schools.	
Total number of students in technical and vocational education in 2019-2020:	6,229
Total number of male students in technical and vocational education in 2019-2020:	5,621
Total number of female students in technical and vocational education in 2019-2020:	608
Believing in the principle of "education for all", the Government of the Kingdom of Bahrain provides free education in government schools and institutes specializing in technical and	

vocational education for citizens and residents: there are no tuition or exam fees, no transport costs (except for private transportation), and no taxes are imposed on parents for their children's education.

- Indicate whether your country has adopted and reviewed legislation related to the minimum age of entry into employment so that it is aligned with the end of compulsory education:

Please note that minimum age labour laws and those related to compulsory education interdependent and mutually reinforce each other. If the minimum age of employment is below that of compulsory education, the child is at risk of dropping out of school to work and therefore not completing compulsory education. On the other hand, if compulsory education is lower than the minimum age of employment, once the child has completed compulsory education, the door is open to child exploitation and the violation of labour laws.

Yes ☐ No ☐

- Please provide reference to the relevant laws and provisions:

Constitution of the Kingdom of Bahrain, Chapter One, The State, article 2:

- (a) The State sponsors sciences, literature and the arts, encourages scientific research, and guarantees education and cultural services for citizens. Education is compulsory and free in the early stages, as specified and provided in law. The necessary plan to eliminate illiteracy is laid down in law.
- (b) The law regulates aspects of attention to religious and national education in the various stages and types of education, and in all of them it is concerned with strengthening the citizen's personality and pride in Arabism.
- (c) Individuals and bodies may establish private schools and universities under the supervision of the State, and in accordance with the law.
- (d) The State guarantees the inviolability of educational institutions

2.3 Higher education

Article/Paragraph 4(a) of the Convention/Recommendation provides for higher education. Ensuring higher education is essential to achieve SDG4, both targets 4.3⁸, and target 4.4⁹.

- Please indicate the measures adopted to ensure that there is no discrimination on the grounds prohibited by the Convention/Recommendation¹⁰ to enter and complete higher education, including technical and vocational education and training (several items could be ticked/mentioned):

☐ Constitutional laws and/or legislation prohibit discrimination in higher education, including technical and vocational education and training

⁸ Which calls on states to “ensure equal access for all women and men to affordable and quality technical, vocational and tertiary education, including university”.

⁹ Which recommends to “substantially increase the number of youth and adults who have relevant skills, including technical and vocational skills, for employment, decent jobs and entrepreneurship”.

¹⁰ See: Article/Paragraph 1(1).

- ☐ Regulations prohibit discrimination in higher education, including technical and vocational education and training
- ☐ Policies and programs aim to eliminate and prevent discrimination in higher education, including technical and vocational education and training
- ☐ Other:

- Please provide a brief description of the relevant legal, regulatory or policy texts including measures on:

- *Non-discrimination in the admission of students to higher education institutions on the grounds prohibited by the Convention/Recommendation*
- *Non-differential treatment, including of foreign students*

- Please indicate efforts made by your government to ensure that higher education is equally accessible to all on the basis of individual capacity and/or is available free of charge (several items could be ticked/mentioned):

Article 4 of the Convention requires states to make “higher education equally accessible to all on the basis of individual capacity”. Article 13 of the International Covenant on Economic, Social and Cultural Rights, further adds that this should be pursued by “every appropriate means, and in particular by the progressive introduction of free education”.

- ☐ Higher education is generally free of charge
- ☐ Higher education is accessible on the basis of individual capacity as assessed by reference to relevant qualifications and experience
- ☐ Higher education is accessible through financial incentives and scholarships
- ☐ Higher education is accessible through positive or affirmative action measures
- ☐ Higher education is accessible through credit transfer system between states
- ☐ Other:

- Please elaborate on the measures taken and provide brief information on the financial costs to receive education in higher public or private education institutions, if higher education is not free of charge.

In this part, you may also provide information on the difficulties experienced by your government as regards access to higher education and on the progress realized. Quantitative information could be added.

2.3 Adult education and alternative learning

Article/Paragraph 4(c) of the Convention/Recommendation provides for adult education and alternative learning. While SDG4 aims to “ensure inclusive and equitable quality education and promote lifelong learning opportunities for all”, target 4.6 specifically calls on states to “ensure that all youth and a substantial proportion of adults, both men and women, achieve literacy and numeracy”. Furthermore, under target 4.4, states are called “to increase and diversify learning opportunities, using a wide range of education and training modalities, so that all youth and adults, especially girls and women, can acquire relevant knowledge, skills and competencies for decent work and life.”

The Kingdom of Bahrain, which is a member of UNESCO, is working hard to achieve Bahrain Economic Vision 2030, which relies heavily on education as the real lever for achieving a comprehensive civilizational shift in all fields, as lifelong education and combating discrimination in education strengthen and support the goals UNESCO is seeking to achieve. We have the UNESCO texts on combating discrimination in education from the perspective of social justice, which come within the context of the movement to rethink education and to achieve the fourth Sustainable Development Goal, led by UNESCO at the global level. Bahrain has worked hard and steadily on continuing education. Adult education has contributed to reducing the illiteracy rate to less than 2.4%, which is among the lowest in the world. This was an expression of the belief in the importance of education and its role in progress. The 2002 Constitution of the Kingdom of Bahrain guarantees the right to education for all citizens within the framework of a philosophy that stems from the fundamentals and values of the true Islamic religion, human and civilizational interaction, the Arab identity of the Kingdom of Bahrain and the cultural and social framework of the people of Bahrain as an extension of their ancient heritage.

Bahrain can bear witness to a great history regarding continuing education, as it assumed the role of teaching the Holy Quran at the community level in traditional schools known as *mutawa* or *katatib*, and over long periods of the literacy process. In the 1940s, private clubs began to run evening classes with the aim of eradicating adult illiteracy without discrimination. The Joint National Committee for Adult Education, which included some clubs and two women's associations, followed by opening more classes for men and other classes for women's education.

Education in the Kingdom aims to provide learners with a national, scientific, professional and cultural formation with emotional, moral, mental, social, economic, health, behavioural and sporting elements within the framework of the principles of true religion, Arab heritage, contemporary culture, the nature of Bahraini society and its customs and traditions.

In 1973, the Ministry of Education assumed responsibility for literacy and adult education by establishing the Literacy and Adult Education Observatory, which later became the Literacy and Adult Education Authority, the Adult Education Department, and then the Continuing Education Department, within which study was organized into four stages:

1. Literacy stage: This began in the 1973/74 academic year, and aims to eradicate reading and writing illiteracy and teach basic mathematical skills. It lasts for two academic years, and is divided into two levels (the first level equivalent to the first and second years of primary school and the second level to the third and fourth years of primary school in regular basic education). This stage aims to provide the individual with the minimum basic skills by studying the courses specially prepared for this category of students in Arabic, Islamic education and mathematics.
2. Follow-up stage: This began in the 1975/76 academic year, lasts for two academic years, and is divided into two levels (the first level equivalent to the fifth year of primary school, and the second level to the sixth year of primary school in regular basic education). Those with a certificate of completion of the literacy stage or the fourth year certificate of regular education who are above the age of compulsory education are accepted for this stage,

which aims to enhance the skills and experiences acquired by learners and guard against regression to illiteracy.

3. Consolidation stage: This began in the 1979/80 academic year, lasts for two academic years, and is divided into two levels (the first level equivalent to the first and second years of middle school, and the second to the third year of middle school of regular basic education). The aim is to complete basic education for adults by applying the content and curricula of regular middle school education. Students who have completed the follow-up phase or its equivalent and are over the age of compulsory education (under the Education Act) are accepted for this stage. After completion of this stage, students are granted an equivalent preparatory certificate and can transfer to regular education according to admission requirements.
4. Evening secondary education stage: This aims to give holders of the equivalent middle school certificate the opportunity to complete secondary education. It was first implemented in the 2008/2009 academic year and offers secondary education equivalent to the morning regular secondary education (standardization of paths) that focuses on the academic courses offered to students. It includes three academic levels, each of which lasts a full academic year divided into two semesters, so that these three levels include 182 credit hours, of which 156 basic hours are counted in the grade point average and 26 enrichment hours are not counted in the grade but are required for graduation.

- Please indicate the efforts made by your government to establish a system of continuing education and equitable access to learning and training opportunities (several items could be ticked/mentioned):

- ☐ Provision of education for persons who have not received or completed the whole period of their primary education
- ☐ Provision of literacy programmes
- ☐ Provision of appropriate learning and life-skills programmes
- ☐ Provision of free of charge learning opportunities
- ☐ Provision of flexible learning pathways
- ☐ Provision of professional training and qualifications
- ☐ Other:

- Please elaborate further on the measures taken:

2.5 Quality education provision and learning environment

(see under 2.7)

Articles/Paragraphs 2, 4(b) and 5(b) of the Convention/Recommendation provide for quality education. Quality education is fundamental to achieve all targets of SDG4. It is also

particularly highlighted in SDG target 4.a that recommends states to “build and upgrade education facilities that are child, disability and gender sensitive and provide safe, non-violent, inclusive and effective learning environments for all”.

- Please indicate the measures taken by your country to ensure equivalence in all educational institutions with regard to (several items could be ticked/mentioned):

- ☐ Establishment of minimum norms and standards in education
- ☐ Establishment of conditions relating to the quality of the education provided (e.g. infrastructure, learner/teacher ratios, teaching and learning materials, use of ICT)
- ☐ Adoption of legal or regulatory provisions to ensure that children learn in a safe environment free from violence or harassment, including school-related gender-based violence (in and around schools).

- Please elaborate further on the measures taken:

To provide such quality assessment, please take into account all educational institutions of the same level. You may include information on policies, protocols or codes of conduct.

2.6 Education personnel

Article/Paragraph 4(d) of the Convention/Recommendation provides for the education personnel. This corresponds to SDG target 4.c which is entirely devoted to the teaching profession as it calls on states to “substantially increase the supply of qualified teachers”.

- Please indicate the measures taken to improve the teaching and working conditions of education personnel, especially teaching staff at all levels in your country and regarding the training for the teaching profession (several items could be ticked/mentioned):

- ☐ Teachers’ average salaries are competitive or at least comparable to those paid in other professions requiring similar or equivalent qualifications (at all levels)
- ☐ Initial training and continuous professional development is provided
- ☐ Minimum standards and qualifications are required for the teaching profession
- ☐ Measures taken to strengthen the social status and attractiveness of the teaching profession
- ☐ Performance monitoring systems
- ☐ Measures taken to increase women in leadership positions in education
- ☐ Other:

- Please briefly elaborate further on the measures taken:

- Have there been instances of discrimination as regards the training for education personnel in your country?

- ☐ Yes: Has your government addressed this issue?

☐ Yes

☐ No

☐ No

2.7 Respect for human rights and fundamental freedoms

2.5 Quality education provision and learning environment

The Kingdom of Bahrain believes that the content of the right to education is based on three dimensions: the student as the main focus of this right, the teacher who is described as the mind of this right, and the educational institution that is the place where this right is exercised. The right to education embraces the three dimensions in one crucible, namely the integrated education system. In order to strengthen the exercise of the right to education, most countries when organizing their education system strive to achieve these three dimensions by establishing education institutions that have facilities and infrastructure and provide a safe educational environment for students. This is to protect them from various kinds of physical and psychological harm, to improve the material, professional and academic conditions of teachers and, above all, to create an integrated educational system that achieves the desired results of exercise of this right.

In this context, all international agreements regulating human rights affirm the need to enable individuals to exercise the right to education in accordance with international standards closely related to the dimensions of this right in general and to the education system in particular. States must take these standards into consideration when organizing them; otherwise, it would be considered to be in violation of the international standards governing the provisions for the exercise of the right to education.

Hence the concern for the right to education, as it is the main pillar on which the advancement of any society rests economically, politically, culturally, and socially. In view of the importance of the right to education, it has been affirmed by all the divine laws; then came the international conventions regulating human rights to reaffirm the right to education and set the best standards for their practice. International standards began by regulating the right to education from two main viewpoints:

1. Considering the right to education as an empowering right, being the primary means by which all members of society can lift themselves out of poverty, not to mention the vital role this right plays in protecting women and children from work and exploitation.
2. The right to education is not limited to a specific stage or type of education, but rather includes all types and stages of education. It also includes access to education, its level and quality, and the conditions in which it is provided. It is this that is explicitly addressed in article 2, paragraph 1, of the Convention Against Discrimination in Education, approved by the General Conference of UNESCO on 14 December 1960, and which came into force on 22 May 1962 in accordance with the provisions of article 14.

With regard to the efforts of the Kingdom of Bahrain to adopt this right, it has worked since the beginning of the reform project of His Majesty King Hamad bin Isa Al Khalifa, the beloved monarch of the country, may God protect him, who wished the Constitution and national legislation of the Kingdom of Bahrain governing public life in the country to guarantee the preservation of the right to education for all citizens, starting from the first years of their lives, and in accordance with the highest standards and approved and developed foundations. In order to make every effort to build an educated society, to pay attention to the human element as a basic and permanent resource, and to achieve what was stipulated in the country's Constitution, the Education Act was adopted on 15 August 2005, article 2 of which stated that "Education is a right guaranteed by the Kingdom for all citizens".

Regarding article 4(a) of the Convention Against Discrimination in Education, whereby States Parties undertake “To make primary education free and compulsory; make secondary education in its different forms generally available and accessible to all; make higher education equally accessible to all on the basis of individual capacity; assure compliance by all with the obligation to attend school prescribed by law”, and as an embodiment of the lofty royal vision, the Government worked to make education opportunities universal in all regions of the Kingdom and available to all. The enrolment rate in the basic stage has reached 100%, which contributed to the country’s achieving the development goals and many of the goals of Education for All ahead of the target dates by enabling all children to obtain good, free and compulsory basic education. In recent years, the numbers of students enrolled in education at all educational levels have increased. Thanks to the support and assistance of the wise leadership, the Ministry of Education has continued to achieve a great deal in the context of implementing the development programmes and projects announced to implement the right to education. The most important measures taken by the Ministry of Education to ensure that education is free and compulsory for all learners include:

1. Implementation of the age of compulsory education. In 2006, a special section was established to follow up the implementation of compulsory education for those of compulsory school age (6-15 years) and to follow up on those of that age group who are not at school, and work to re-enrol them in education, in coordination with the Central Information Agency and information management systems of the Ministry of Education.
2. Education for All: The Global Education Monitoring Reports issued by UNESCO indicate that the Kingdom of Bahrain has achieved honourable results in relation to all of the following indicators:
 - High enrolment rate at the primary level (100%)
 - High percentage of gender equality (97%)
 - Low drop-out rate (less than 0.4%)

Regarding article 4(c) of the Convention Against Discrimination in Education, whereby States Parties undertake “To encourage and intensify by appropriate methods the education of persons who have not received any primary education or who have not completed the entire primary education course and the continuation of their education on the basis of individual capacity”, and adhering to the principle of equality and equal opportunities among citizens in all fields, especially education, the Kingdom of Bahrain established a system of continuing education that replaces the previously approved literacy system, by forming the National Joint Committee for Continuing Education in 1971. For this purpose, Bahrain participated in the Fifth International Conference on Adult Education, and the Dakar Conference in 2000. It also undertook to implement General Assembly Resolution 54/122 of 2000 on a United Nations literacy decade: education for all, in compliance with the provisions of UNESCO's proposal. Efforts were not limited to the eradication of illiteracy, but also sought to eradicate computer illiteracy. To facilitate the implementation of these programmes, the Kingdom took a range of supportive measures, including:

- Opening kindergartens for children whose mothers are enrolled in continuous training centres.
- Providing transportation for students and teachers, especially women.
- Introducing the psychological counselling and vocational guidance service in the 2006/2007 academic year.
- Implementing a literacy project in the form of intensive training courses.
- Preparing the Related Subjects project based on merging family education skills with literacy skills and experimenting with it in the Arabic language.

Regarding article 4(b) of the Convention Against Discrimination in Education, whereby States Parties undertake “To make primary education free and compulsory; make secondary education in its different forms generally available and accessible to all”, the Kingdom of Bahrain has made every

effort to frame its commitment to this principle in article 4 of the Constitution; the principle of equality between citizens is enshrined in articles 4 and 18 of the Constitution, and the principle of ensuring education services to all citizens is enshrined in article 7.

The Ministry of Education has also committed to all international agreements ratified by the Kingdom of Bahrain related to achieving the principle of equal opportunities for all individuals on the basis of equality and full participation. In its successive strategic plans, the Ministry has enshrined these principles by promoting the right to education without discrimination between boys and girls. In its capacity as the body responsible for the education system and education policy in the country, the Ministry has worked to direct all its human capabilities and material resources towards achieving the goals of the education for all policy and future directions for the development of education, providing the necessary opportunities for the growth of the individual, whether male or female, and providing educational opportunities for all individuals to develop their aptitudes, abilities and skills, realise their potential and develop their lives and society.

The Ministry has also worked to diversify educational opportunities according to the different individual needs of students, including: gifted students, by enriching their experiences; slow learners and students with special needs, by following up their progress and integrating those who are able into education; literacy and adult education programmes for all members of society who are not yet able to read, with the provision of functional literacy programmes for adults. The latest Education For All report issued by UNESCO included the main indicators measuring the extent of the world's commitment to the goals of the UNESCO Education For All programme by 2015 and includes four indicators: universal primary education (represented by the net enrollment rate index at the primary level), adult literacy (represented by the literacy rate index), gender parity (represented by the gender parity index), and quality of education (represented by the index of survival to the fifth grade of primary school). It is worth noting that in all Education for All reports the Kingdom of Bahrain ranked among the highest-performing countries, along with the developed countries.

Through the guiding framework of education for citizenship and human rights, and designing the academic programme for the various educational stages and years in public and private schools in the Kingdom of Bahrain, the Ministry of Education was keen to consider the principle of equal opportunities as one of the essential pillars on which curricula, programmes, textbooks, and all educational means and media must be built. One of the advantages of this approach is the establishment of what is known as positive discrimination for the benefit of the most needy social groups, and specifically for the benefit of highly motivated people.

Ongoing support is also given to all male and female teachers of all groups and, through the application of various supervisory methods, training is provided for those working in the teaching profession without discrimination according to need and available human capabilities in order to achieve the goals of the strategic plan emanating from the Government programme. Audiovisual lessons are given on television and 14 YouTube channels provided by a specialist in curricula and educational supervision and a group of teachers. Care is taken when preparing the lessons to focus on basic competencies, imparting concepts and skills to students – as far as possible enhanced by values – and taking into account diversity of methods and means, student styles and intelligence, and varying constructive and evaluation activities.

Article/Paragraph 5(1)(a) of the Convention/Recommendation provides for the respect for human rights and fundamental freedoms. This is covered under SDG target 4.7.¹¹ Please note that this section contributes to the general monitoring of Article/Paragraph 5(1)(a) of the Convention/Recommendation and that the consultation on the 1974 Recommendation concerning Education for International Understanding, Co-operation and Peace and Education relating to Human Rights and Fundamental Freedoms will be used specifically for monitoring SDG4 indicator 4.7.1.

- Please indicate the national efforts taken in directing education to the full development of the human personality and the strengthening of respect for human rights and fundamental freedoms (several items could be ticked/mentioned):

- ☐ Curriculum includes human rights education
- ☐ Educational and/or extracurricular activities are organized on human rights education
- ☐ Other:

2.8 Private education

Private education is available to all. There is no discrimination in education in terms of opening private educational institutions, nor any discrimination in the education systems followed in private schools as education is available to all (Bahrainis, Arabs, foreigners, residents, etc.) and all private schools are committed to respecting national sovereignty and different religions.

Based on the provisions of Legislative Decree No. 25 of 1998 on private educational and training institutions (the articles on the establishment of private educational institutions are attached) and Ministerial Decision No. 1689 of 2006 on licensing fees for private educational institutions when an investor applies to establish a private educational institutions (school, institute or education centre), implemented through the following measures:

1. Registration of the application in the registration programme at the Ministry of Industry, Commerce and Tourism.
2. Submission of a letter to the Private Education Department requesting the opening of a private educational institution, attaching the initial documents and the completed application form for licensing of a private educational institution.
3. Interview of those who meet the conditions.
4. A letter to the Criminal Evidence Department of the Ministry of Interior, requesting issuance of a no-objection note.
5. Letter to the relevant authorities in the Ministry to obtain approval.
6. A meeting of the joint (Ministry of Education and Ministry of Labour) committee studies the application and gives initial approval.
7. If the application is approved, the applicant receives a letter containing the remaining documents required for granting of the licence.
8. Delivery of the documents required for inspection of the property (paper + CD): a certificate of ownership, a copy of the general site and architectural drawings, with an explanation of the usage plan.

¹¹ Which calls on states to “ensure that all learners acquire the knowledge and skills needed to promote sustainable development, including, among others, through education for sustainable development and sustainable lifestyles, human rights, gender equality, promotion of a culture of peace and non-violence, global citizenship and appreciation of cultural diversity and of culture’s contribution to sustainable development”.

9. The documents concerning the property inspection are sent to the School Buildings Section of the Planning and Educational Projects Department for approval. The initial technical report is issued and the capacity is determined.
10. Letters are sent to the Traffic Operations and Control Department, Ministry of Works, Municipalities and Urban Planning to obtain approval for the property.
11. The proposed curricula and textbooks are sent to the Curriculum Department for approval.
12. A letter from the applicant stating that the building is ready, with equipment and furniture.
13. The required documents concerning the building inspection (paper + CD) (certificate of ownership, a copy of the general site and architectural drawings, with an explanation of the usage plan) are submitted once it is ready.
14. The documents concerning the building – after it is ready – are sent to the School Buildings Section of the Education Planning and Projects Department for approval and issuance of the final technical report and determination of capacity.
15. Letters are sent to the Operations and Traffic Control Department, the Civil Defence Department and the Ministry of Works, Municipalities and Urban Planning to obtain approval of the school building.
16. A study of the financial situation by the Financial Affairs and Budget Department of the Ministry of Education.
17. The application is submitted to the joint committee for final approval after the licensing conditions and criteria have been fulfilled.
18. After fulfilling the requirements, a letter is sent to His Excellency the Assistant Undersecretary for Private and Continuing Education, enclosing the draft ministerial decision for the new licence.
19. The applicant receives a copy of the ministerial decision in order to complete the licensing fee and financial guarantee procedures.
20. The school receives the original copy of the ministerial decision and must keep copies of it in its files.

The foregoing procedures apply to all investors without distinction of religion, as schools of all kinds (national, foreign and community) are free to apply the curriculum after obtaining the approval of the Ministry of Education in this regard.

The Student Discipline Regulation is applied to all students without distinction of religion through Decision No. 99/MN/2017 issuing the Student Discipline Regulations for all students at all academic levels in public and private schools for 2017.

The administration implements the provisions of Legislative Decree No. 25 of 1998 regarding private educational and training institutions and relevant ministerial decisions, including:

Article 22 provides:

Foreign private educational institutions shall adhere to the curricula, books and school hours approved by the Ministry in relation to Arabic language courses for Bahraini and Arab students and Islamic religious education for Muslim students, if the institution admits such students, and in relation to the history and geography of the State of Bahrain for all students, within the school timetable and without additional fees. The following shall be taken into consideration when determining these curricula:

- (a) The public interest and the interests of Arab, Muslim and foreign students in the State of Bahrain.
- (b) The system to be followed in evaluating students' achievement in the aforementioned subjects.

- (c) Muslim students shall not attend religious lessons other than those of the Islamic religion and shall not at any stage of education be involved in activities related to non-Islamic religious lessons, such as preaching, counselling and prayer.

Article 23 provides:

Educational institutions of foreign communities are required to:

1. Respect the national sovereignty of the State of Bahrain and abide by its laws and regulations.
2. Apply the educational curricula of the country to which that community belongs.
3. Restrict admission to the members of the community that established the institution.

Articles/Paragraphs 2(c) and 5(1)(b) of the Convention/Recommendation provide for private education.

- Does your country have a regulatory framework relating to the establishment and functioning of private educational institutions?

Yes ☐ No ☐

- Please provide a brief description:

- Do legal provisions prohibiting discrimination on the grounds listed by the Convention/Recommendation¹² explicitly apply to private educational institutions?

Yes ☐ No ☐

- Please briefly describe what laws, regulations or policies guarantee that the development of private education does not generate discrimination and that private schools offer a relevant alternative in your country:

- Does your country have an education policy framework for minimum educational standards as regards the rights of the parents /legal guardians for providing religious and moral education for their children?

Yes ☐ No ☐

2.9 Rights of national minorities

Article/Paragraph 5(1)(c) of the Convention/Recommendation provides for the rights of national minorities. National minorities, who often face language barriers, are among the specific groups referred to in the Convention.

¹²

See: Article/Paragraph 1(1).

- Please indicate the legal, policy and regulatory measures that protect the rights given to national minorities to carry out their own educational activities (several items could be ticked/mentioned):

- ☐ Constitutional laws and/or legislation protect the right to education of national minorities
- ☐ Legislation or regulations guarantee the right of national minorities to study in their mother tongue
- ☐ Curriculum is adapted to national minority needs
- ☐ Teachers are trained to adapt to national minority needs
- ☐ Other:

- Please provide a brief description of the provisions:

- As regards the educational standards in educational institutions run by minorities, please describe the existing legal and policy framework:

Information could also cover the language facilities, such as the availability of teaching in the mother tongue of the students, use of teaching of languages in education policy, multilingualism, etc.

2.10 Rights of refugees and migrants

The rights of refugees and migrants are not explicitly provided for in the Convention/Recommendation. However, the Convention and Recommendation call on states to eliminate and prevent discrimination in education based notably on national origin.¹³ In this context, a number of Member States that participated in the 9th Consultation reported on measures adopted to ensure refugees' and migrants' right to education. Growing displacement and influx of refugees worldwide and the emergence of major educational challenges in this area, as well as the frameworks recently adopted by the international community,¹⁴ demonstrate the opportunity for states to report on measures adopted to include refugees and migrants in their educational systems.

Besides, this aspect also corresponds to SDG target 4.5, which calls on states to “ensure equal access to all levels of education and vocational training for the vulnerable”, including “children in vulnerable situations”, and covers the majority of SDG4 targets.

- Please briefly describe the existing legal and policy framework that protects the right to quality education for refugees and migrants in your country.

¹³ Articles/Paragraphs 1 and 3.

¹⁴ Namely the 2016 New York Declaration for Refugees and Migrants, the Comprehensive Refugee Response Framework and the two Global Compacts on refugees and for safe, orderly and regular migration.

- Please briefly indicate measures adopted by national and local authorities to ensure refugees' and migrants' right to education (several items could be ticked/mentioned):

- ☐ Inclusion in mainstream education
- ☐ Provision of language courses
- ☐ Specific training for educational staff
- ☐ Initiatives addressing discrimination and promoting cultural diversity and mutual acceptance
- ☐ Alternative administrative procedure (placement tests, portfolio of evidence, etc.)
- ☐ Accelerated learning programmes
- ☐ Non-formal and/or alternative education programmes
- ☐ Financial support
- ☐ Other innovative measures:

Please briefly elaborate further on the measures taken:

III. Methods used to draw the attention of the various authorities in the country to the instruments and to remove the obstacles encountered

1. Challenges and obstacles

- 1.1 Please indicate and provide any information on the difficulties encountered in the process of implementing the key provisions of the Convention/Recommendation (including legal and practical obstacles) and on the main issues that need to be addressed for promoting further the right to education in your country (several items could be ticked/mentioned):

- ☐ Challenges related to equitable access and inclusion in education (such as poverty and socio-economic factors, cultural and traditional attitudes, remoteness, migration and displacement, etc.)

- ☐ Challenges related to the quality of education (such as shortages of qualified, trained and motivated teaching staff, non-supportive or inadequate teaching and learning as well as school environment, etc.)

- ☐ Challenges relating to the system and governance (such as budgetary constraints, lack or weakness of monitoring systems – including the lack of reliable data, absence of supportive/inconsistent/obsolete legal and policy environment, lack of involvement of relevant stakeholders and lack of cooperation/coordination at different levels, etc.)

☐ Other:

- 1.2 Please provide a brief assessment of the effectiveness of the methods introduced to remove the obstacles encountered:

2. Awareness-raising

UNESCO governing bodies have underlined the need for awareness raising. Given the importance of normative action at the national level, wide dissemination of the Convention must be ensured, with the support of National Commissions for UNESCO.

- Have activities been carried out to draw the attention of the various authorities of the country to the Convention/Recommendation and their provisions about the right to education and to raise awareness of the principles of non-discrimination and equality of educational opportunities? (several items could be ticked/mentioned)

- ☐ Translation of the Convention/Recommendation into the national and possibly local languages
- ☐ Dissemination and advocacy of the core content of the Convention/Recommendation or the core principles of the right to education
- ☐ Increased public awareness through advocacy material on the Convention/Recommendation or the core principles of the right to education
- ☐ Activities undertaken or supported by the National Commission to promote non-discrimination and equality of educational opportunities and to foster debate on critical issues in relation to the rights enshrined in the instruments
- ☐ Other: